SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Criminal Appeal No. 1 of 1960

CNR: SCIN010000011960

Date: 06 May, 1960

Citation: AIR 1960 SC 1125

CORAM: Hon'ble S.K. Das, J.L. Kapur, K. Subba Rao, M. Hidayatullah, J.C. Shah, JJ.

Petitioner: State of Uttar Pradesh

- VERSUS -

Respondent: Deoman Upadhyaya

DOMAIN: LAW OF EVIDENCE & CONSTITUTIONAL VALIDITY **STATUS: Good Law (Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Section 27 of the Evidence Act creates a valid classification. The ban imposed by Sections 25 and 26 on police confessions is lifted in part when information given by an accused in custody distinctly leads to the discovery of a fact.

STATUTES APPLIED: Section 27 Evidence Act, Section 25 Evidence Act, Article 14

DISPOSITION: CONSTITUTIONAL VALIDITY OF SECTION 27 EVIDENCE ACT UPHELD

EXECUTIVE RATIO SUMMARY:

Five-judge Constitution Bench upheld the constitutional validity of Section 27 of the Indian Evidence Act, ruling that allowing recovery of weapons or facts discovered pursuant to custodial disclosure statements does not violate Article 14.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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